

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1062

By: Luttrell

AS INTRODUCED

An Act relating to alcoholic beverages; amending 37A O.S. 2021, Section 2-121, as amended by Section 1, Chapter 81, O.S.L. 2022 (37A O.S. Supp. 2024, Section 2-121), which relates to employee licenses; providing that holders of a license may serve certain beverages if they are older than eighteen (18) years of age; providing restrictions; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 37A O.S. 2021, Section 2-121, as amended by Section 1, Chapter 81, O.S.L. 2022 (37A O.S. Supp. 2024, Section 2-121), is amended to read as follows:

Section 2-121. A. An employee license shall authorize the holder thereof to work in a licensed package store, retail spirits, retail wine or retail beer establishment, brewpub, mixed beverage establishment, beer and wine establishment, bottle club, public event or any establishment where alcohol or alcoholic beverages are sold, mixed or served. Persons employed by a mixed beverage, on-premises beer and wine, retail wine, retail beer, public event or a

1 bottle club licensee who do not participate in the service, mixing
2 or sale of mixed beverages shall not be required to have an employee
3 license. Provided, however, that a manager employed by a mixed
4 beverage licensee, public event licensee or a bottle club shall be
5 required to have an employee license whether or not the manager
6 participates in the service, mixing or sale of mixed beverages.
7 Applicants for an employee license shall be at least eighteen (18)
8 years of age, except for applicants employed by a grocery store or
9 convenience store who shall be at least sixteen (16) years of age,
10 and have a health card issued by the county in which they are
11 employed, if the county issues such a card; provided, the provisions
12 of this section shall not be construed to permit any person under
13 twenty-one (21) years of age to be employed to sell spirits,
14 however, individuals eighteen (18) years and older may serve beer
15 and wine from their original containers and may serve spirits from a
16 shaker tin that has been pre-made and mixed by an employee who is at
17 least twenty-one (21) years of age. Employees of a special event,
18 caterer, unless catering a mixed beverage-licensed premises, or
19 airline/railroad beverage licensees shall not be required to obtain
20 an employee license; further, employees of beer distributors and
21 other licensees holding licenses issued by the ABLE Commission shall
22 not be required to obtain an employee license if such employee only
23 sells alcohol or alcoholic beverages to establishments holding
24 licenses issued by the ABLE Commission and not to the public.

1 Persons employed by a hotel licensee who participate in the stocking
2 of hotel room mini-bars or in the handling of alcoholic beverages to
3 be placed in such devices shall be required to have an employee
4 license. As a prerequisite to the issuance of an employee license,
5 not later than fourteen (14) days after initial licensure, the
6 first-time applicant shall be required to have successfully
7 completed a training program conducted by the ABLE Commission, or by
8 another entity approved by the ABLE Commission including an in-house
9 training program conducted by the employer. Proof of training
10 completion shall be made available for inspection by the ABLE
11 Commission at the business location employing the licensee. The
12 failure of an employee licensee to comply with this section may
13 constitute a revocable offense.

14 B. In the event the ABLE Commission denies an application for
15 an employee license, the Commission shall provide written notice to
16 the applicant's employer, if any. The notice shall be given at the
17 time notice is provided to the applicant.

18 SECTION 2. This act shall become effective November 1, 2025.

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